

Raees Khan v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 2 February 2023 · Writ - C No. 3551 of 2023 · **Writ declined; petitioner relegated to Section 127 appeal**

HEADNOTE

A writ against a final assessment order passed under the Electricity Act, 2003 and the Electricity Supply Code, 2005 is not examined where an appeal lies under Section 127. The petitioner is relegated to that statutory remedy.

FACTUAL SUMMARY

Raees Khan filed Writ-C No. 3551 of 2023 in the Allahabad High Court against the State of U.P. and another, challenging the final assessment order dated 14 October 2022 passed by respondent no. 2 under the Electricity Act, 2003 and the Electricity Supply Code, 2005. The order states no assessed amount, connection particulars, or ground of challenge beyond that final assessment.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

appeal against final assessment

HOLDING

The remedy against a final assessment order under the Electricity Act, 2003 and the Electricity Supply Code, 2005 is an appeal under Section 127. The High Court declines to examine the writ challenge and relegates the petitioner to that appeal. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal The petitioner challenged the final assessment dated 14.10.2022. The Court treated Section 127 as the remedy and relegated him to that appeal without examining the assessment. ¶ 1

alternate-remedy-section-127-appeal-bars-writ Because an appeal under Section 127 was available against the final assessment, the Court declined to examine the writ challenge. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE FINAL ASSESSMENT DATED 14.10.2022

Left entirely to the Section 127 appeal; the writ court declined to examine the challenge. ¶ 1